TOWN OF DAVIE
Community Redevelopment Agency Board
Meeting Minutes

Wednesday, June 3, 2025, at 6:00 p.m.

I. PLEDGE OF ALLEGIANCE

The meeting was called to order at 6:02 p.m.

II. ROLL CALL

Present at the CRA meeting were Chair Paul, Vice-Chair Luis, Board Members Whitman, Hattan, and Starkey. Also, present were CRA Executive Director/Town Administrator Lemack, CRA Director/Assistant Town Administrator Holste, CRA Attorney Weinthal, Program Manager Ellett, Economic Development Manager Thomas and Board Secretary Brewster.

III. PRESENTATION – NONE

IV. APPROVAL OF CONSENT AGENDA

Chair Paul asked if anyone would like to pull any of the items. Board Member Hattan made a motion to approve the Consent Agenda. The motion was seconded by Vice Chair Luis. In a voice vote, all voted in favor. (Motion carried 5-0)

Minutes

1. **MAY 7, 2025, MEETING MINUTES**

Resolutions

2. **DEVELOPER'S AGREEMENT –** A RESOLUTION OF THE TOWN OF DAVIE COMMUNITY REDEVELOPMENT AGENCY, APPROVING THE FIRST AMENDMENT TO THE DEVELOPER'S AGREEMENT BETWEEN THE TOWN OF DAVIE, THE TOWN OF DAVIE COMMUNITY REDEVELOPMENT AGENCY AND PRESTIGE DAVIE MAIN STREET PLACE, LLC; PROVIDING FOR SEVERABILITY; PROVIDING FOR CONFLICTS; AND PROVIDING FOR AN EFFECTIVE DATE.

3. **BUDGET AMENDMENT –** A RESOLUTION OF THE TOWN OF DAVIE COMMUNITY REDEVELOPMENT AGENCY, AUTHORIZING THE SECOND BUDGET AMENDMENT TO THE FISCAL YEAR 2025 BUDGET; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; AND PROVIDING FOR AN EFFECTIVE DATE.

V. DISCUSSION OF CONSENT AGENDA ITEMS

VI. PUBLIC HEARING

4. **PURCHASE AND SALE AGREEMENT –** A RESOLUTION OF THE TOWN OF DAVIE COMMUNITY REDEVELOPMENT AGENCY, APPROVING THE PURCHASE AND SALE AGREEMENT BETWEEN THE TOWN OF DAVIE COMMUNITY REDEVELOPMENT AGENCY AND HIGHLANDER PROPERTY MANAGEMENT, LLC FOR THE PURCHASE OF REAL PROPERTY (4101 SW 64 AVENUE; FOLIO #504127310010); PROVIDING FOR SEVERABILITY; PROVIDING FOR CONFLICTS; AND PROVIDING FOR AN EFFECTIVE DATE.

Chair Paul asked CRA Attorney Weinthal to read the item by title. CRA Attorney Weinthal read the item by the title. Chair Paul mentioned this item was a Public Hearing item and asked if anyone would like to speak on the item. Seeing none, Chair Paul closed the Public Hearing.

Director Holste asked to speak before this item was considered. Director Holste mentioned there are three properties that will be considered this evening either in the capacity as the CRA Board or the Town Council. Director Holste mentioned the properties include the former McDonalds property, the Flashback property and the former Wendy's property. In this particular case, the CRA Board will only be considering the former McDonalds property. The other two properties, the Flashback Diner and the former Wendy's property, will be considered by the Town Council and just as a reminder the Town Council will also be considering the ratification and approval of the purchase of the former McDonalds property by the CRA Board. Director Holste mentioned the site is about three (3) acres and just wanted everyone to be clear on what they are voting on this evening.

Chair Paul mentioned she has reviewed the items and had a few questions.

- Chair Paul asked Attorney Weinthal to confirm that the CRA Board and the Town of Davie Town Council have the right to terminate this agreement at any time. Attorney Weinthal confirmed that the CRA Board and Town has the right to terminate this agreement at any time and at our sole discretion for any reason as long as it's done prior to the end of the inspection period. If that happens, the CRA Board/Town will receive a full refund. The exception being is that after the inspection period, the seller could not provide good marketable title, the CRA has the right to terminate the agreement and receive our full deposit back.
- Chair Paul confirmed it was during the due diligence period/inspection period. Attorney Weinthal confirmed that the seller must deliver good marketable title.
- Chair Paul asked when we are expected to close. Attorney Weinthal indicated we are looking to close prior to July 3, 2025. The Seller has made it very clear that she would like to close as soon as possible, but we are not trying to rush this. Attorney Weinthal indicated that if we can close earlier, we will.
- Chair Paul asked what would happen to the contents of the building. Attorney Weinthal indicated that prior to closing, the Seller must fully vacate the building. What she does with the contents is up to her along with her personal belongings, but the fixtures must stay.

- Chair Paul asked if the title search has brought any information to light that might cause any issues with the title. Attorney Weinthal introduced Attorney, Gary Signer, our outside legal council who will be performing the closing. Mr. Singer indicated his firm has performed a thorough abstract and title search of the entire property, going back more than 30 years through the marketable record title act standards and there was nothing unusual turned up that could not be resolved during the normal closing process that would result in marketable title.
- Board Member Hattan wondered if the Seller would owe the CRA any money back for the grant program which they participated in. Attorney Weinthal mentioned there is an outstanding balance as part of the Commercial Property Improvement Program Grant and the funds due will be cancelled out per the contract.

Board Member Hattan made a motion to approve Item #4 Purchase and Sale Agreement between the Town of Davie Community Redevelopment Agency and Highlander Property Management, LLC for the purchase of real property (4101 SW 64 Avenue; Folio #504127310010). The motion was seconded by Chair Paul. In a roll call vote, Chair Paul - yes; Board member Whitman – yes; Board member Starkey; Board member Hattan; Vice Chair Luis – yes. (Motion carried 5-0)

VII. SCHEDULE OF NEXT MEETING

Future CRA Meetings
Wednesday, July 23, 2025, at 6:00 p.m.
Wednesday, August 6, 2025, at 6:00 p.m.
Wednesday, September 3, 2025, at 6:00 p.m.

VIII. CHAIR AND BOARD MEMBER COMMENTS

IX. CRA DIRECTOR COMMENTS

Director Holste mentioned the CRA closed on the Penninsular building last week and once the building has been torn down, the property will be used for overflow parking for the rodeo grounds.

X. CRA ATTORNEY COMMENTS - NONE

XI.REPORT ITEMS – The monthly reports were provided.

XIV. ADJOURNMENT

There being no further business to discuss and no objections, the meeting was adjourned at 6:09 p.m.

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Date

Chair/Vice Chair
Town of Davie Community Redevelopment Agency

ATTEST:

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Board Secretary